

100 Beal Street: The 37-Year Journey

From Naval Munitions Bunkers to State-Protected Senior Affordable Housing (1989–2026)

Executive Summary

- **Location:** 100 Beal Street, Hingham, MA (School Tract II)
- **Record Property Owner:** Hingham Housing Authority (Independent State Entity)
- **Proposed Development:** 68-Unit Senior Affordable Rental Residence (Ages 62+)
- **Selected Developer:** Peabody Properties / AHSC (99-Year Ground Lease)
- **Municipal Taxpayer Cost:** Exactly \$0 in Town Borrowing or Taxpayer Debt

Milestone Chronology

- **1989:** Town deeds 15 acres with 30-year adolescent care reverter
- **2001:** WWII naval munitions bunkers demolished; 8-acre Lot 2 created
- **2006:** Town Meeting 2/3 vote mandates senior affordable housing
- **2019:** Select Board 3–0 litigation vote; State DHCD statutory transfer block
- **2021:** Housing Authority votes 4–0 to permanently retain land for housing
- **2026:** Project actively advancing toward permitting and title resolution

April 1989: The Deed & The 30-Year Reverter

Town Conveys 15.014 Acres of Surplus Military Land to HHA

Historical Context & Authority

- **Execution Date:** March 7, 1989 | **Recording Date:** April 21, 1989
- **Registry Citation:** Plymouth County Registry of Deeds, Book 09097, Page 158 (Doc #29758)
- **Grantor:** Inhabitants of the Town of Hingham
- **Grantee:** Hingham Housing Authority
- **Stated Consideration:** \$45,751 for 15.014-Acre School Tract II

Documented Legal Findings

- **Specific Use Restriction:** Dedicated solely for adolescent residential facility
- **Full Property Scope:** Restriction applied to ALL 15.014 acres of School Tract II
- **Right of Re-Entry:** Town retained right to enter if youth use ceased
- **The 30-Year Limitation Clause (Page 160):** Deed expressly dictates re-entry terminates after thirty years pursuant to M.G.L. c. 184A, § 3
- **Expiration Deadline:** March 7, 2019 (Exactly 30 calendar years)

1990 to Present: Continuous Public Service

The 12-Bed Adolescent Facility Operates Without Interruption

Historical Context & Authority

- **Facility Footprint:** 12-bed group home constructed on dedicated 2.0-acre parcel fronting Beal Street
- **Funding Program:** Commonwealth Chapter 689 specialized public housing funds
- **Operational Oversight:** State youth services contract and licensed child care provider
- **Continuous Public Service:** Over 35 consecutive years of continuous operation

Documented Legal Findings

- **Legal Standard:** Re-entry required cessation of adolescent residential use
- **Zero Default:** Facility never ceased operations or abandoned its mission
- **State Encumbrance:** Chapter 689 funding attached permanent state public housing covenants
- **Unclouded Title on Lot 1:** Active youth home remains undisturbed on its 2-acre lot

June 2001: Demolition, Remediation & Division

WWII Munitions Bunkers Cleared; 8-Acre Surplus Plateau Created

Historical Context & Authority

- **Naval History:** Interior 13 acres held abandoned WWII ammunition bunkers and berms
- **Environmental Cleanup:** Town funded demolition of structures and asbestos/soil remediation
- **Cooperative Agreement:** Town and HHA execute administrative Memorandum of Understanding
- **Boundary Survey:** Gale Associates prepares formal division survey

Documented Legal Findings

- **Recorded Instrument:** Plan 100 of 2001 (Plymouth Plan Book 44, Page 412)
- **Lot 1 (2.000 Acres):** Active adolescent group home with dedicated Beal Street frontage
- **Lot 2 (8.020 Acres):** Remediated, buildable upland plateau with direct Beal Street access
- **Milestone Result:** Created clean, separate building lot for future public housing needs

May 2006: Town Meeting Mandates Senior Housing

Declared 2/3 Supermajority Authorizes Deed Release for Affordable Housing

Historical Context & Authority

- **Legislative Assembly:** Hingham Annual Town Meeting (May 1, 2006)
- **Warrant Article 38:** Sponsored to unlock Lot 2 surplus plateau for senior housing
- **Voting Result:** Declared two-thirds supermajority vote in favor by Hingham voters
- **Certified Seal:** Attested by Town Clerk Eileen A. McCracken

Documented Legal Findings

- **Enacted Text:** Authorized Selectmen to amend 1989 deed restriction to permit affordable housing
- **Democratic Will:** Clear democratic mandate dedicating parcel to senior community living
- **The Administrative Breakdown:** Town Hall never executed or recorded the amended deed release
- **Decade-Long Oversight:** Omission left 1989 deed restriction technically unreleased on record

2017–2018: The Unexecuted Deed Resurfaces

Beal Street Due Diligence Reveals the Unrecorded Release

Historical Context & Authority

- **Title Rediscovery:** Town Counsel Susan Murphy discovers 2006 deed release was never recorded
- **Selectmen Meeting Jan 30, 2018:** Selectman Karen Johnson details 2001 bunker remediation history
- **Selectmen Meeting Feb 13, 2018:** HHA Chair Bob Keys requests review of restrictions and covenants
- **Town Position:** Board of Selectmen argues 8 acres should belong to Town due to remediation funding

Documented Legal Findings

- **Corporate Independence:** Housing Authority is an independent public body under state law
- **Statutory Mission:** HHA holds property for affordable housing, not general municipal real estate
- **Board Resistance:** HHA commissioners vote against voluntary conveyance back to municipal hall
- **Escalating Impasse:** Board of Selectmen prepares legal strategy in executive session

February 2019: The 30-Year Deadline & Lawsuit Vote

Select Board Votes 3–0 to Sue Housing Authority Nine Days Before Deadline

Historical Context & Authority

- **30-Year Expiration:** March 7, 2019 (Exactly 30 years from March 7, 1989 execution)
- **Legal Expiration Risk:** Town Counsel advises right of re-entry extinguishes forever on Day 30
- **Executive Session:** February 26, 2019 at 6:45 PM (Nine days before statutory expiration)
- **Public Reconvening:** Board returns to open session at 7:00 PM (Chairman Paul Healey presiding)

Documented Legal Findings

- **Formal Litigation Vote:** Moved by Healey, seconded by Johnson, voted 3–0 unanimous
- **Documented Mandate:** 'To file litigation regarding enforcement of agreement as to 100 Beal Street'
- **Core Objective:** Force HHA to deed 100 Beal Street back to Town Hall before reverter lapsed
- **Municipal Standoff:** Town Hall prepares formal litigation against its own Housing Authority

June 2019: The Emergency Transfer Vote Under Duress

Facing Litigation, Housing Authority Boards Vote to Surrender 19 Acres

Historical Context & Authority

- **Meeting Date:** June 5, 2019 (Special Meeting of HHA Board of Commissioners)
- **Litigation Threat:** Board confronted with pending Select Board court action
- **The Motion:** Board votes to approve transfer of ~19 acres off Beal Street to the Town
- **Scope of Surrender:** Contemplated relinquishing Lot 2 and associated Housing land

Documented Legal Findings

- **The Illusion of Finality:** Town Hall believed the property dispute had been settled
- **Statutory Constraints:** Local housing authorities cannot convey public housing property unilaterally
- **State Financial Interest:** Chapter 689 funding triggered mandatory Commonwealth supervision
- **Imminent State Reaction:** State regulatory authorities intervene to safeguard the asset

Summer 2019: The State Steps In

Massachusetts DHCD Enforces Statutory Protections on Public Housing Land

Historical Context & Authority

- **Governing Authority:** Massachusetts General Laws Chapter 121B (Housing & Urban Renewal)
- **Legal Status:** Housing authorities are independent public bodies corporate, not Town departments
- **Jurisdiction:** Board of Selectmen has zero statutory authority to seize or command housing assets
- **Public Purpose:** Land dedicated to low-income housing cannot be alienated for general municipal use

Documented Legal Findings

- **Supervisory Regulator:** Massachusetts DHCD (Associate Director Amy Stitely)
- **Statutory Bar (M.G.L. c. 121B, § 34):** Public housing land cannot be transferred without written state approval
- **Regulatory Letters:** Issued April 19 & June 26, 2019 to HHA and Town Counsel
- **State Decision:** DHCD formally refuses to consent to municipal recapture

July 2019: The Legal Lock on Title

Commonwealth Records Notice of Statutory Transfer Restriction

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Historical Context & Authority

- **Recording Timestamp:** July 18, 2019 at 1:44 PM
- **Registry Citation:** Plymouth County Registry of Deeds, Book 51379, Page 244 (Doc #55967)
- **Grantor/Regulator:** Commonwealth of Massachusetts DHCD
- **Encumbered Real Estate:** Assessor Map 58, Block 0, Lot 23 (100 Beal Street)

Documented Legal Findings

- **Public Notice:** Formally notifies title examiners and municipal attorneys of Chapter 121B, § 34 restriction
- **Legal Nullity:** Any deed executed without DHCD written approval is void as a matter of state law
- **ALTA Survey:** Explicitly recognized as Schedule B, Item 5 encumbrance on 2024 boundary survey
- **Permanent Protection:** Land permanently protected for public housing purposes

September 2021: HHA Rescission & The Unresolved Title Cloud

Ownership Reaffirmed, But 1989 Adolescent Restriction Remains on Record

Historical Context & Authority

- **Assembly:** September 7, 2021 Regular Meeting at 30 Thaxter Street
- **Legal Concurrence:** Backed by formal DHCD correspondence and specialized municipal counsel
- **The Motion:** Commissioner O'Meara moves to rescind the June 5, 2019 transfer motion
- **Roll Call:** Commissioners Suchecki, O'Meara, Lauter, Buhr vote 4–0 unanimous

Documented Legal Findings

- **Ownership Retained:** Fee title remained with HHA under state statutory protection
- **The Continuing Cloud:** The 2021 vote did NOT erase the 1989 deed restriction from Registry
- **Missing Release:** Town Hall never recorded the 2006 deed release on the public records
- **2024 ALTA Survey Note 3:** Kellem & Kellem / Control Point explicitly states: *'Need release or change of this restriction from the Town of Hingham'*

December 2024: Verified Environmental Stewardship

Conservation Commission Records MassDEP ORAD Protecting Tucker's Swamp

Historical Context & Authority

- **MassDEP Docket:** MassDEP File No. 034-1509
- **Hearing:** November 4, 2024 before Hingham Conservation Commission
- **Roll Call:** Passed 5–0 unanimous (Nielsen, Mosher, Roby, Villanova, Freeman)
- **Recorded Instrument:** Plymouth Registry Book 59527, Page 273 (Doc #78968, Dec 10, 2024)

Documented Legal Findings

- **155+ Delineated Flags:** Certified boundary survey by Lucas Environmental, LLC
- **Protected Resources:** 3 Bordering Vegetated Wetlands, 2 Isolated Wetlands, vernal pool
- **ACEC Buffer Protection:** Safeguards Tucker's Swamp and Weymouth Back River watershed
- **Verified Plateau:** Confirms Lot B contains expansive, high-and-dry buildable upland

August 2025: Peabody Award (Conditional Ground Lease)

68 Senior Units Under a 99-Year Ground Lease Contingent on Title Resolution

Historical Context & Authority

- **Procurement Package:** 155-Page RFP issued April 16, 2025 under M.G.L. c. 30B / c. 121B
- **Award Meeting:** August 12, 2025 HHA meeting; passed 4–0 unanimous roll call
- **Designated Developer:** Peabody Properties / Affordable Housing Services Corp. (AHSC)
- **Target Demographic:** 68 Rental Apartments for Seniors 62 and older

Documented Legal Findings

- **99-Year Ground Lease:** Land fee ownership stays permanently with Hingham Housing Authority
- **Upfront Consideration:** Developer pays \$500,000 upfront lease fee to Housing Authority
- **Contingent Agreement:** Ground lease execution depends on state approvals and title resolution
- **Taxpayer Obligation:** Exactly \$0 in municipal borrowing or Town general fund debt

Architectural Vision: Modest, Sustainable & Senior-Focused

Universal Design, Internal Courtyard, and Low-Impact Civil Engineering



Project Specifications & Universal Living

- **Architectural Scale:** Modest 3-story wood-frame design complementing Hingham neighborhoods
- **Universal Accessibility:** 100% single-floor barrier-free living, wide corridors, dual elevators
- **Community Amenities:** Multi-purpose hall, wellness exam room, outdoor walking paths, gardens
- **Environmental Buffers:** 50-foot undisturbed natural vegetative tree buffer to all abutters
- **Stormwater Innovation:** Advanced bioretention swales filtering 100% of rainwater on-site

Clearing Up the Town Rumor: CAL vs. 100 Beal Street

The Defeated Project Was Bare Cove Park CAL; 100 Beal Street Was Never on the Ballot

Feature / Question	100 Beal Street Senior Affordable Housing	Bare Cove Park Center for Active Living (CAL)
Project Nature	68-Unit Residential Housing for Seniors 62+	Daytime Municipal Senior Activities Facility
Land Ownership	Hingham Housing Authority (Independent State Entity)	Inhabitants of the Town of Hingham (Municipal Park)
Project Location	100 Beal Street (Lot B Upland Plateau)	Bare Cove Park Drive (Inside Bare Cove Park boundary)
Cost to Taxpayers	\$0 Town Borrowing / \$0 Municipal Debt	\$29,930,000 Municipal Debt Exclusion Borrowing
Town Meeting Action	Never voted down or rejected at Town Meeting	Defeated at Town Meeting on April 27, 2026 (Art. 12)
Current Status	ACTIVE: Advancing toward 40B permitting & title agreement	DEFEATED: Stalled due to failed 2/3 debt borrowing vote

Conclusion & The Path Forward: Resolving the Final Hurdle

37 Years of History Moving Toward Permitting and Municipal Resolution

Historical Context & Authority

- **37-Year Evolution:** Naval Depot → Adolescent Care → Bunker Cleanup → Senior Housing
- **Secure Ownership:** Land remains with Housing Authority under state statutory protection
- **Environmental Approval:** 155+ wetland flags stamped and protected under recorded MassDEP ORAD

Documented Legal Findings

- **The Final Hurdle:** Formally clearing the historic 1989 deed restriction on title
- **Dual Pathways:** Select Board execution of 2006 authorized release OR Chapter 40B override
- **Community Result:** 68 permanently affordable homes for seniors with \$0 in municipal debt